

STATE OF NEW YORK

8454--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 16, 2025

Introduced by M. of A. BICHOTTE HERMELYN -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property law, in relation to creating the tenants' bill of rights

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "tenants' bill of rights".

2 § 2. The real property law is amended by adding a new section 230-a to read as follows:

3 § 230-a. Tenants' bill of rights. 1. Any tenant who occupies a rental property as their primary residence shall have the following rights:

4 (a) the right to premises that are fit for human habitation as provided by the warranty of habitability provided by section two hundred thirty-five-b of this article;

5 (b) the right to form, join or participate in tenants' groups as provided in section two hundred thirty of this article;

6 (c) the right to be free from retaliation by landlord against the tenant as provided in section two hundred twenty-three-b of this article;

7 (d) in buildings with four or more residential units, the right to sublease or assign the tenant's rights to the unit in accordance with the provisions of section two hundred twenty-six-b of this article;

8 (e) the right to notice of rent increase or non-renewal of the residential tenancy as provided in section two hundred twenty-six-c of this article;

9 (f) the right to terminate the lease in accordance with the provisions of section two hundred twenty-seven-a, two hundred twenty-seven-b or two hundred twenty-seven-c of this article;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (g) the right to offset payments made to a utility company against the
2 rent due as provided in section two hundred thirty-five-a of this arti-
3 cle, applicable to any residential unit;

4 (h) the right to receive a receipt for the payment of rent as provided
5 in section two hundred thirty-five-e of this article;

6 (i) the right not to utilize an electronic billing and/or payment
7 system as the only method for the payment of rent as provided in section
8 two hundred thirty-five-g of this article; and

9 (j) the rights pertaining to security depositor advance payment of
10 rent as provided in sections 7-103, 7-105, 7-107 and/or 7-108 of the
11 general obligations law.

12 2. Subject to the provisions of subdivision three of this section,
13 each landlord renting a residential unit in this state shall:

14 (a) attach a copy of the tenants' bill of rights to each written lease
15 and provide the same to the tenant with the executed lease;

16 (b) provide a copy of the tenants' bill of rights to each tenant
17 entering into an oral lease at the time the tenant agrees to the lease;
18 and

19 (c) for units containing more than six rental units, affix a notice to
20 tenants of the rights described in this section to the front entrance to
21 the rental premises or elsewhere in the building in a location readily
22 available to the tenants.

23 3. (a) Except as provided in paragraph (b) of this subdivision, the
24 provisions of this section apply to written and/or oral leases for resi-
25 dential property, including leases for subsidized, rent-regulated or
26 rent stabilized units.

27 (b) The following properties are exempt from the provisions of this
28 section:

29 (i) units in owner-occupied buildings with six or fewer units;

30 (ii) units in hotels, motels, rooming houses, unless rent is paid on a
31 monthly basis and such unit is occupied for more than thirty-two days;

32 (iii) school dormitory rooms;

33 (iv) shelters;

34 (v) employees' quarters;

35 (vi) non-residential rental properties; and

36 (vii) owner-occupied cooperative apartments where the tenant is the
37 unit owner or shareholder of a cooperative housing corporation, or is
38 the owner-occupied condominium apartment.

39 § 3. This act shall take effect on the ninetieth day after it shall
40 have become a law.